

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 4453

By: Newton of the House

and

Rader of the Senate

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10 COMMITTEE SUBSTITUTE

11 An Act relating to health insurance; creating the
12 Oklahoma Health Care Cost Transparency Board;
13 providing purpose for the Board; directing Board to
14 oversee operation and reporting of the All Payer
15 Claims Database; providing membership of Board;
16 directing for members to serve staggered terms;
17 clarifying members shall serve without compensation
18 but may receive travel reimbursement; directing Board
19 to meet at least quarterly; permitting Board to
20 create technical working groups; directing the
21 Department to establish and maintain an All Payer
22 Claims Database; directing to the Database to collect
23 and analyze health care costs, utilization, and
24 spending data; directing the Database to include
 certain data; directing for collected data to be used
 for certain purposes; granting Insurance Department
 rule-making authority; permitting publication of
 deidentified, aggregated data; directing the Oklahoma
 Health Care Authority to maintain and update state
 primary care spend methodology and definitions;
 directing all regulated commercial health insurers
 measure annual primary care spending; directing
 commercial health insurers to submit annual reports;
 directing commercial health insurers to achieve
 minimum percentage of total medical spending devoted
 to primary care by certain date; directing the Board
 to establish benchmarks; directing the Insurance

1 Department to compile annual analyses of primary care
2 spending levels; granting the Insurance Commissioner
3 exclusive authority to determine and implement
4 enforcement mechanisms and incentives; granting
5 certain authority related to benchmark goals to the
6 Commissioner; allowing Board to make advisory
7 recommendations to Commissioner; directing the
8 Insurance Department to coordinate with the Oklahoma
9 Health Care Authority and other agencies; directing
10 Board to prepare an annual report; directing for
11 report to be published to Insurance Department
12 website; providing for codification; and providing an
13 effective date.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 8000 of Title 36, unless there
is created a duplication in numbering, reads as follows:

A. There is hereby created within the Oklahoma Insurance
Department, the Oklahoma Health Care Cost Transparency Board,
hereinafter referred to as the Board.

B. The purpose of the Board is to:

1. Measure statewide health care cost growth and primary care
investment trends across commercial insurance, Medicaid, and
Medicare;

2. Ensure consistent statewide evaluation of total health
expenditures and primary care spending; and

3. Foster transparency and accountability in Oklahoma's health
care system.

1 C. The Board shall oversee the operation and reporting
2 functions of the All Payer Claims Database (APCD) established under
3 Section 3 of this act.

4 SECTION 2. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 8001 of Title 36, unless there
6 is created a duplication in numbering, reads as follows:

7 A. The Health Care Cost Transparency Board shall consist of
8 fourteen (14) members, as follows:

9 1. The Insurance Commissioner, or designee, who shall serve as
10 chair;

11 2. The Chief Executive Officer of the Oklahoma Health Care
12 Authority (OHCA), or designee;

13 3. The Commissioner of Health, or designee;

14 4. One representative of a licensed commercial health insurer,
15 appointed by the Insurance Commissioner;

16 5. One representative of employers or large purchasers of
17 health care, appointed by the Governor;

18 6. One representative of a hospital or health system, appointed
19 by the Speaker of the Oklahoma Hospital Association;

20 7. One representative of a rural health organization, appointed
21 by the Healthcare Workforce Training Commission;

22 8. One representative recommended by the Oklahoma Academy of
23 Family Physicians (OAFP);
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1 9. One representative recommended by the Oklahoma Chapter of
2 the American Academy of Pediatrics (OKAAP);

3 10. One independent primary care provider practicing in
4 Oklahoma;

5 11. One consumer advocate, appointed by the Governor;

6 12. One health care economist or data analytics expert,
7 appointed by the Speaker of the Oklahoma House of Representatives;

8 13. One behavioral health care provider, appointed by the
9 President Pro Tempore of the Oklahoma State Senate; and

10 14. One primary care provider practicing in Oklahoma
11 recommended by the Oklahoma Primary Care Association.

12 B. 1. The first class of members shall serve terms as follows:

13 a. paragraphs 4, 11, and 12 of subsection A of this
14 section shall serve an initial one-year term,

15 b. paragraphs 5, 7, and 10 of subsection A of this
16 section shall serve an initial two-year term, and

17 c. paragraphs 6, 8, 9, and 13 of subsection A of this
18 section shall serve an initial three-year term.

19 2. All members, with the exception of paragraphs 1, 2, and 3 of
20 subsection A of this section following the first class shall serve
21 three-year terms.

22 3. All members, with the exception of paragraphs 1, 2, and 3 of
23 subsection A of this section shall be reappointed only once.
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1 C. Members shall serve without compensation but may receive
2 reimbursement for travel under the State Travel Reimbursement Act.

3 D. The Board shall meet at least quarterly and may create
4 technical working groups for data, transparency, and performance
5 evaluation.

6 SECTION 3. NEW LAW A new section of law to be codified
7 in the Oklahoma Statutes as Section 8002 of Title 36, unless there
8 is created a duplication in numbering, reads as follows:

9 A. The State Coordinator for the Health Information Exchange,
10 created in Section 1-132.1 of Title 63 of the Oklahoma Statutes,
11 shall establish and maintain an All Payer Claims Database (APCD) to
12 collect and analyze health care costs, utilization, and spending
13 data from all payer types operating within this state.

14 B. The APCD shall, to the extent permitted by law, include data
15 from:

16 1. Commercial health insurers and third-party administrators;

17 2. The Oklahoma Health Care Authority, covering all Medicaid
18 programs; and

19 3. The Centers for Medicare and Medicaid Services, providing
20 Medicare data under applicable data use agreements.

21 C. Data collected shall be used to:

22 1. Measure statewide health care cost trends and cost growth;

23 2. Determine rates of investment in primary care across all
24 payer segments; and

1 3. Support public transparency and policy evaluation.

2 D. The Department shall adopt rules setting standards for data
3 submission, validation, and confidentiality consistent with federal
4 and state privacy laws.

5 E. The Department may publish de-identified, aggregated data
6 through regular public reports and dashboards.

7 SECTION 4. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 8003 of Title 36, unless there
9 is created a duplication in numbering, reads as follows:

10 A. The Oklahoma Health Care Authority (OHCA) shall maintain and
11 periodically update the state primary care spending methodology and
12 definitions originally established for Medicaid, which shall serve
13 as the uniform statewide standard for measuring primary care
14 expenditures under this act.

15 B. All commercial health insurers regulated under Title 36 of
16 the Oklahoma Statutes shall:

17 1. Measure their annual primary care spending using the OHCA-
18 approved methodology; and

19 2. Submit annual reports of primary care and total medical
20 expenditures to the Insurance Department.

21 C. The Oklahoma Health Care Cost Transparency Board, in
22 consultation with OHCA, shall establish interim benchmarks for the
23 years 2027 through 2029 and monitor progress toward the 2030 goal.

1 D. The Insurance Department shall compile annual analyses of
2 primary care spending levels across all payer types and publish a
3 statewide transparency report.

4 SECTION 5. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 8004 of Title 36, unless there
6 is created a duplication in numbering, reads as follows:

7 A. The Insurance Commissioner shall have exclusive authority to
8 determine and implement enforcement mechanisms and incentive
9 programs under this act.

10 B. The Commissioner may:

11 1. Require commercial insurers not meeting progress benchmarks
12 to submit corrective action plans;

13 2. Impose administrative penalties not to exceed Five Thousand
14 Dollars (\$5,000.00) per day for willful noncompliance with data
15 reporting or benchmark requirements;

16 3. Develop incentive programs or recognition designations for
17 insurers demonstrating sustained investment in primary care,
18 achievement of benchmarks, or innovations in value-based care; and

19 4. Consider primary care investment performance when conducting
20 rate, form, or network adequacy reviews.

21 C. The Board may make advisory recommendations to the
22 Commissioner, but all enforcement and incentive actions shall be
23 determined and administered solely by the Insurance Commissioner's
24 Office.

1 SECTION 6. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 8005 of Title 36, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The Insurance Department shall promulgate rules as necessary
5 to carry out the provisions of this act, including specifications
6 for data submission, risk adjustment, benchmark evaluation, and
7 public reporting.

8 B. The Department shall coordinate with the Oklahoma Health
9 Care Authority (OHCA) and other agencies to ensure consistent
10 application of methodologies and efficient use of existing data
11 infrastructure.

12 SECTION 7. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 8006 of Title 36, unless there
14 is created a duplication in numbering, reads as follows:

15 A. The Oklahoma Health Care Cost Transparency Board shall
16 prepare an annual report for the Governor, the President Pro Tempore
17 of the Oklahoma State Senate, and the Speaker of the Oklahoma House
18 of Representatives describing:

19 1. Statewide health care cost growth trends;

20 2. Primary care spending levels across commercial, Medicaid,
21 and Medicare payers;

22 3. Commercial insurer performance relative to interim and final
23 benchmarks; and
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1 4. Policy recommendations to promote value and affordability in
2 the health care system.

3 B. The report shall be published annually on the Insurance
4 Department website and made available to the public. The initial
5 report shall be published no later than December 31, 2027.

6 SECTION 8. This act shall become effective November 1, 2026.
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8 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
9 OVERSIGHT, dated 02/25/2026 - DO PASS, As Amended.
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